

ebony polish finish and its accompanying adjustable bench ("Piano") which is currently possessed by Defendant Debra Vernon ("Defendant") and is the subject of this breach of contract case. Plaintiff's application is accompanied by notice, Memorandum of Points and Authorities, Declaration of Glen Turnipseed. The Piano is located at Defendant's Danville home. This case has been referred to binding arbitration.

Defendant filed an opposition on January 16, 2026 informing the Court that this matter has been assigned to AAA for binding arbitration. Defendant claims that a writ of possession is premature and will serve to undermine the authority of the arbitrator. Defendant seeks a stay of this case, including the application for writ of possession for the Piano.

Plaintiff's reply brief points out to the Court that Defendant has not filed a request for stay, and that arbitration does not remove the court's authority to grant provisional remedies, such as their request for a writ of possession.

Analyses

The authority for the Court to issue a writ of possession is found in Cal. Code of Civ. Proc. §512.010, et. Seq. To prevail on a writ, the applicant must satisfy the requirements of Section 512.060, which requires the applicant to establish the probable validity of the plaintiff's claim to possession of the property.

Here, the Court is not convinced that Plaintiff has met that burden without further proceedings. While Plaintiff has attached copies of the loan agreement allegedly breached by Plaintiff, Defendant sets forth legitimate allegations that Plaintiff has not properly established valuation or has complied with the Truth in Lending act provisions. Prior to arbitration, where those matters will be determined, it is premature to conclude that Plaintiff has established a claim to possession of the Piano, which is superior to its right to recover monetary damages resulting from an alleged breach of a loan agreement.

As to the request for stay, the Court is persuaded by Defendant's arguments that a stay on these proceedings pending arbitration is warranted in order to avoid the waste of judicial resources, to prevent parallel litigation and to allow the arbitration to conclude.

After considering the papers submitted by the parties, and applying the relevant statutory and decisional authority, the Court finds good cause to deny this application.

Ruling

Plaintiff Finwise Bank's Application for Writ of Possession is **denied** without prejudice. This matter is **stayed** pending the conclusion of arbitration. The Court continues the case management conference to July 21, 2026 at 8:30 a.m.. The parties are requested to file a further case management conference statement to inform the Court about the status of arbitration.

15. 9:00 AM CASE NUMBER: C25-01869
CASE NAME: JOHN BENNETT STUDHOLME VS. SUBARU CORPORATION,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SUBARU OF AMERICA, INC.,

TENTATIVE RULING:

Defendant Subaru of America (“SOA”) brings the instant demurrer to the eighth cause of action for fraudulent concealment in the complaint of plaintiff John Bennett Studholme (“Plaintiff”). SOA argues that Plaintiff failed to plead sufficient facts related to knowledge of falsity, duty, and damages, and has not pled their fraud claim with the requisite level of specificity.

For the reasons discussed below, the Court sustains SOA’s demurrer to the eighth cause of action for fraudulent concealment. Plaintiff may file and serve an amended complaint within 30 days of entry of this order. (Code Civ. Proc., § 472b.)

Meet and Confer

The meet and confer requirement has been satisfied. (Laura D. Vawter Decl., ¶¶ 1-6; Code Civ Proc., § 430.41.)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Background

The complaint here alleges nine claims: (1) Breach of Express Warranty—Song-Beverly Consumer Warranty Act; (2) Breach of Implied Warranty of Merchantability—Song-Beverly Consumer Warranty Act; (3) Breach of Implied Warranty of Fitness—Song-Beverly Consumer Warranty Act; (4) Failure to Make Available Parts and Literature; (5) Violation of Business and Professions Code § 17200; (6) Violation of Business and Professions Code § 17500; (7) Negligent Misrepresentation; (8) fraudulent concealment; and (9) negligent repair.

The complaint asserts claims against four defendants: (1) Subaru Corporation; (2) Subaru of America; (3) Good Son SM, LLC dba Santa Monica Subaru; and (4) Lithia of Walnut Creek, Inc. dba Diablo Subaru of Walnut Creek. Most of the claims are alleged against all defendants, except the eighth cause of action for fraudulent concealment, which is alleged only against Subaru Corporation and SOA, and the negligent repair claim, which is only asserted against defendant Good Son SM, LLC dba

Santa Monica Subaru.

According to the complaint, on June 9, 2025, Plaintiff leased a Subaru Ascent. (Complaint, ¶ 20.) Since then, Plaintiff has experienced mechanical as well as fit and finish issues with the vehicle. (*Id.* at ¶ 25.) Despite multiple attempts to fix the vehicle, it still suffers from the mechanical issues. (*Id.* at ¶¶ 26-28.)

Discussion

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.) “A duty to disclose a material fact can arise if . . . the material facts are known or accessible only to the defendant, and the defendant knows those facts are not known or reasonably discoverable by the plaintiff (i.e., exclusive knowledge). . .” (*Ibid.*) When there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship, under certain circumstances, suppression of a material fact is actionable. (*Hoffman v. 162 North Wolfe LLC* (2014) 228 Cal.App.4th 1178, 1186–1187.) A plaintiff must plead fraud, including concealment, with specificity. (*Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 132.)

Knowledge of Falsity

SOA argues that Plaintiff’s allegations at paragraphs 107 and 110, relating to knowledge of the “defective transmission,” are insufficient and conclusory. (Demurrer MPA, pp. 4:18-5:3.) Plaintiff argues that their allegations are sufficient. (Opposition, p. 7:8-14.) SOA does not address this argument in its reply. (Reply, pp. 1-5.)

Paragraph 107 of the complaint alleges, “Defendants were the only parties with knowledge of the defective transmission because that knowledge came from internal reports such as pre-release testing data, customer complaints made directly to the Defendants, and technical service bulletins. None of this information was available to the public, nor did Defendants publicly or privately disclose any of the information to Plaintiffs.” The Court finds this to be pleaded sufficiently.

Duty to Disclose

SOA argues that it “was not under a duty to disclose.” (Demurrer MPA, p. 5:5-6.) A duty to disclose can arise “when the defendant had exclusive knowledge of material facts not known to plaintiff.” (*Id.* at p. 5:6-8; *Heliotis v. Schuman* (1986) 181 Cal.App.3d 646, 651.) SOA asserts that “Plaintiff fails to state facts establishing any exclusive knowledge by SOA of any purported defect. Plaintiff’s allegations that SOA had knowledge of these facts is conclusory at best since Plaintiff merely vaguely reiterates that SOA had knowledge from pre-release testing data, customer complaints made directly to the Defendants, and technical service bulletins throughout the Complaint.” (*Id.* at p. 5:17-22.)

This Court disagrees because it finds that Plaintiff’s allegations on this topic are not conclusory. An example of a conclusory allegation on this would be an allegation that contained a legal conclusion

without any reference or connection to alleged facts, such as, “defendant had exclusive knowledge of material facts not known to Plaintiff.” Here, Plaintiff goes further than that and alleges that:

Defendants were the only parties with knowledge of the defective transmission because that knowledge came from internal reports such as pre-release testing data, customer complaints made directly to the Defendants, and technical service bulletins. None of this information was available to the public, nor did Defendants publicly or privately disclose any of the information to Plaintiffs. (Complaint, ¶ 107.)

The Court finds this to be a sufficient allegation of exclusive knowledge of material facts not known to Plaintiff. SOA offered some additional arguments on this topic in its reply that the Court will not address because they were not raised in the opening brief. “Points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before. To withhold a point until the closing brief deprives the respondent of the opportunity to answer it or requires the effort and delay of an additional brief by permission.” (*Campos v. Anderson* (1997) 57 Cal.App.4th 784, 794 n.3.)

Injury/Damages

SOA argues that Plaintiff has insufficiently alleged their injury/damages. (Demurrer MPA, p. 6:4-28.) At issue are the allegations from paragraph 112 of the complaint, which assert that “[i]f the Defendants and/or their agents publicly or privately disclosed the existence of the defective components to Plaintiffs at or before the sale, they would not have purchased the Subject Vehicle.” SOA argues that Plaintiff “cannot recover the purchase price under the fraud cause of action because Plaintiff seeks recovery of the same under the warranty causes of action.” (*Id.* at p. 6:19-21.) The Court does not agree with SOA on this because this is a demurrer to a complaint and “a party may plead in the alternative and may make inconsistent allegations.” (*Adams v. Paul* (1995) 11 Cal.4th 583, 593.) Further, “[i]nconsistencies between alternative counts cannot be attacked by demurrer, since each count stands on its own allegations, unaffected by those contained in other counts.” (*Penziner v. West American Finance Co.* (1933) 133 Cal.App.578, 582.)

Heightened Specificity

SOA argues that Plaintiff’s complaint “does not meet the required specificity to plead a cause of action for fraud.” (Demurrer MPA, p. 7:2-4.) SOA continues, “[t]he requirement of specificity when alleging fraud against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written . . . Plaintiff fails to allege any name, any statement . . . the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom [Plaintiff] spoke, what they said or wrote, and when it was said or written. . .” (*Id.* at pp. 7:24-8:8.)

Here, allegations as to who made the allegedly fraudulent representations, their authority to speak, what they said, to whom they spoke, etc., cannot logically be alleged in relation to the instant concealment cause of action, which is not based on fraudulent representations but concealment.

However, the California Supreme Court addressed this in a recent 2024 case, stating, “California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43.)

If the duty allegedly arose by virtue of the parties’ relationship and the defendant’s exclusive knowledge or access to certain facts, as . . . alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) the defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant’s omission. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43-44.)

Plaintiff’s complaint does not contain specific allegations establishing all of the above elements. Numbers one, three, and four are satisfied by allegations at paragraphs 106 (“the defective transmission”), 107 (“None of this information was available to the public”), and 108 (“[b]efore the date of sale, on the date of sale, and on the date of each of the repair attempts. . .”), respectively. It does not appear that Plaintiff has pled specific allegations for elements (2) or (5), identified above. While Plaintiff pleads reliance on the alleged negligent misrepresentations in relation to their seventh cause of action, which are actual representations and not omissions, they do not plead reliance on any omission in relation to the eighth cause of action for fraud by concealment.

The Court concludes that Plaintiff has not properly pleaded their claim for fraudulent concealment.

Ruling

The Court sustains SOA’s demurrer to the eighth cause of action for fraudulent concealment. Plaintiff may file and serve an amended complaint within 30 days of entry of this order. (Code Civ. Proc., § 472b.)

16. 9:00 AM CASE NUMBER: C25-02015

CASE NAME: GOLRIZ HARRINGTON VS. SHAHNAZ NADERI

***HEARING ON MOTION IN RE: STRIKE CROSS-COMPLAINT OF SHAHNAZ NADERI PURSUANCE TO CA'S ANTI-SLAPP STATUTE**

FILED BY: HARRINGTON, GOLRIZ

TENTATIVE RULING:

Cross-Defendants Golriz and Sean Harrington’s special motion to strike the cross-complaint is **denied.**

The Harringtons agreed to lease a property from Naderi starting October 1, 2024. They allege that there were various habitability problems and after attempting to solve the problems (through